

April 7, 2010



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 5493
(SEVENTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of hydrogen sulfide, liquefied, a Division 2.3 material, in certain single-unit tank cars, and provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.314(c) in that a DOT-specification 105 class tank car is not authorized for hydrogen sulfide, liquefied, except as specified herein.
5. BASIS: This special permit is based on the application of Marsulex Incorporated dated February 19, 2008, submitted in accordance with § 107.105 and the public proceeding thereon and supplemental information dated July 26, 2008 and July 26, 2009.

April 7, 20106. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrogen sulfide	2.3	UN1053	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING - Prescribed packagings are:

- (1) DOT Specification 105J600W tank cars fabricated and equipped in accordance with all details included in General American Transportation Corporation's AAR application number 21687 and any subsequent revisions on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).
- (2) DOT Specification 105J600W tank cars fabricated and equipped in accordance with all details included in ACF Industries, Incorporated's AAR application number 20628 and any subsequent revisions on file with the OHMSPA.
- (3) DOT Specification 105J600W tank cars fabricated and equipped in accordance with all details included in Texana Tank Car & Manufacturing, LTD's, AAR application number L-079021 and any subsequent revisions on file with the OHMSPA.
- (4) DOT Specification 105J600W tank cars fabricated and equipped in accordance with details in General American Transportation Corporation's AAR application number A-813348 and any subsequent revision on file with the OHMSPA.
- (5) DOT Specification 105J600W tank cars fabricated and equipped in accordance with details in General American Transportation Corporation's AAR application number F-813469 and any subsequent revision on file with the OHMSPA.

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b. TESTING - Each tank car must be tested and retested as specified for DOT Specification 105J600W tank car tanks.

8. SPECIAL PROVISIONS:

a. A tank car may not be loaded outside of the packaging's design temperature range, as noted in paragraph (e), and marked on the tank.

b. Tanks must be loaded by weight in lieu of any other metering or gauging device. The maximum permitted filling density must not exceed 72%.

c. The gauge pressure of the gas may not exceed 450 psi at 105°F.

d. The water content of the gas may not exceed 0.10% by weight.

e. MARKING - Each tank car must be marked "DOT-SP 5493" in four-inch letters and numerals on a contrasting background, above the DOT Specification. Additionally, each tank car must be marked "MINUS 20° F. MINIMUM LOADING TEMPERATURE" or "MINUS 50° F. MINIMUM LOADING TEMPERATURE" adjacent to the water capacity stencil on the tank jacket based on the Charpy V-notch value with respect to the material of construction.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: None as a requirement of this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie

Associate Administrator for Hazardous Materials Safety
Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: kah/sln